



CHAPTER 33.

An Act to extend the third fixed grant period under the Local Government Act, 1929, and to make provision for the stabilisation of Supplementary Exchequer Grants, and the continuance of schemes as to health services, during the term of such extension; and for purposes connected with the matters aforesaid.

[22nd July 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The third fixed grant period, that is to say, the period for which the amount of the General Exchequer Contribution to be paid under section eighty-six of the Local Government Act, 1929 (in this Act referred to as "the principal Act"), was fixed by the Local Government (Financial Provisions) Act, 1937, shall be extended so as to continue until such date after the expiry of the Emergency Powers (Defence) Act, 1939, as Parliament may hereafter determine, and references to the third or any subsequent fixed grant period, whether express or implied, in the principal Act, in the said Act of 1937, in any other enactment, and in any order, regulations, scheme or other instrument made under any enactment, including (unless the contrary intention appears therein) an enactment or instrument passed or made after the date of the passing of this Act, shall be construed accordingly.

Extension of
third fixed
grant period.
19 Geo. 5. c. 17.

1 Edw. 8. &
1 Geo. 6. c. 22.

2 & 3 Geo. 6.
c. 62.

2. For the sixth and each succeeding year of the third fixed grant period—

- (a) the amount to be added under paragraph (b) of subsection (1) of section ninety-four of the principal Act

Stabilisation of
Supplementary
Exchequer
Grants for
term of
extension.

in respect of any separately rated area in a county district to the sum which apart from that section would be payable as the General Exchequer Grant of the council of that district,

(b) the amount to be paid under paragraph (b) of subsection (1) of section ninety-seven of the principal Act to the council of a county borough, and

(c) the amount to be credited under paragraph (b) of subsection (1) of section one hundred of the principal Act to a separately rated area in the county of London,

shall, notwithstanding the provisions of those paragraphs respectively as to the annual reduction of such amounts and notwithstanding the provisions of section six of the Local Government (Financial Provisions) Act, 1937, be the same as that which fell to be added as aforesaid in respect of the fifth year of that period, or to be paid for that year, or to be credited in that year, as the case may be:

Provided that this section shall have effect subject to the provisions of section one hundred and four of the principal Act (which confers on the Minister a power to reduce grants in the circumstances therein mentioned).

Continuance
for term of
extension of
schemes as to
health
services.

3.—(1) Any scheme whereby provision was made in relation to the fifth year of the third fixed grant period—

(a) under section ninety-three of the principal Act, for increasing the sum to be set aside out of a county apportionment in respect of a district the council of which had established a maternity and child welfare committee, or

(b) under section one hundred and one or section one hundred and two of the principal Act, for the payment of contributions to voluntary associations or to the King Edward the Seventh Welsh National Memorial Association in respect of maternity and child welfare or other health services,

shall (subject to the powers of alteration and revocation conferred by subsection (2) of section one hundred and thirty-one, and subsection (5) of section one hundred and one, of the principal Act) have effect in all respects as if the scheme had extended to the sixth and each subsequent year of the said period and had made in relation to each of those years the same provision as in relation to the fifth year of the said period, or, where the scheme made different provision in relation to different parts of that year, as in relation to the last part thereof.

(2) In the case of a scheme which had effect in relation to the fifth year or, as the case may be, the last part of the fifth year of the said period subject to alterations, the reference in sub-

section (1) of this section to the provision thereby made in relation to that year or, as the case may be, the last part of it shall be construed as a reference to the provision made in relation to that year or part of that year by the scheme as altered.

4.—(1) This Act may be cited as the Local Government (Financial Provisions) Act, 1941, and shall be construed as one with Part VI of the principal Act, and this Act and the Local Government Acts, 1929 and 1937, may be cited together as the Local Government Acts, 1929 to 1941. Short title,
construction
and citation.

(2) References in this Act to any enactment or any provision of any enactment shall, unless the context otherwise requires, be construed as references to that enactment or provision as amended by any subsequent enactment including this Act.

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